

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

18. MONIQUE ROYAL V. GREGORY ROYAL

23FL0191

On December 8, 2025, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 9, 2026. However, the RFO and the CCRC referral were not served until January 9th.

The RFO and other requisite documents were mail served, however, this is a post-judgment request for modification of custody orders. As such, it was required to be personally served or, if served by mail, Respondent was required to complete and file a Declaration Regarding Address Verification – Post Judgment Request to Modify a Child Custody, Visitation, or Child Support Order, which she has not done. See Fam. Code § 215.

Petitioner did not appear at the initial CCRC appointment and she has not filed a Responsive Declaration to Request for Order.

Counsel for Respondent appeared at the March 12th hearing and requested the parties be referred back to CCRC and a new review hearing be set. The court granted the request and set a further CCRC appointment for May 7, 2026 and a review hearing for June 25, 2026.

Petitioner was personally served with the moving papers as well as the minute order from the March 12th hearing on April 20th.

Respondent filed a Supplemental Declaration on May 1, 2026. Petitioner was served the same day.

Neither party appeared for the May 7, 2026 CCRC appointment.

Respondent filed an ex parte application for emergency orders to reset the CCRC appointment on May 7, 2026. On May 11, 2026, the court reset the CCRC appointment for May 21st and reset the review hearing date to July 2, 2026. Respondent was served by overnight mail on May 14, 2026.

Petitioner failed to appear at CCRC on May 21st. As such, a single parent report was filed with the court on May 21, 2026. Copies were mailed to the parties on May 26, 2026.

The court has read and considered the filings as outlined above. The court finds Petitioner has failed to participate in any of the CCRC appointments scheduled. Further, Petitioner has failed to file a Responsive Declaration to Request for Order, therefore, the

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court deems the failure to do so as an admission that Respondent's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court finds Respondent's requested orders are in the minor's best interest. The court grants Respondent sole legal and physical custody of the minor. Petitioner shall have professionally supervised parenting time in California. When Petitioner is in El Dorado County, California, she may have professionally supervised parenting time two times per week for two hours each. Petitioner shall be responsible for the costs of supervision. Petitioner shall have telephonic and video calls with the minor up to three times per week, on Tuesday, Thursday, and Saturday at 6 PM Pacific Time.

All prior orders not in conflict with these orders shall remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: THE COURT FINDS PETITIONER HAS FAILED TO PARTICIPATE IN ANY OF THE CCRC APPOINTMENTS SCHEDULED. FURTHER, PETITIONER HAS FAILED TO FILE A RESPONSIVE DECLARATION TO REQUEST FOR ORDER, THEREFORE, THE COURT DEEMS THE FAILURE TO DO SO AS AN ADMISSION THAT RESPONDENT'S MOVING PAPERS HAVE MERIT. SEE EL DORADO COUNTY, LOCAL RULE 7.10.02(C).

THE COURT FINDS RESPONDENT'S REQUESTED ORDERS ARE IN THE MINOR'S BEST INTEREST. THE COURT GRANTS RESPONDENT SOLE LEGAL AND PHYSICAL CUSTODY OF THE MINOR. PETITIONER SHALL HAVE PROFESSIONALLY SUPERVISED PARENTING TIME IN CALIFORNIA. WHEN PETITIONER IS IN EL DORADO COUNTY, CALIFORNIA, SHE MAY HAVE PROFESSIONALLY SUPERVISED PARENTING TIME TWO TIMES PER WEEK FOR TWO HOURS EACH. PETITIONER SHALL BE RESPONSIBLE FOR THE COSTS OF SUPERVISION. PETITIONER SHALL HAVE TELEPHONIC AND VIDEO CALLS WITH THE MINOR UP TO THREE TIMES PER WEEK, ON TUESDAY, THURSDAY, AND SATURDAY AT 6 PM PACIFIC TIME.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS SHALL REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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19. HOLLIE WALLACE V. JASON WALLACE

24FL1139

Petitioner filed a Request for Order (RFO) on December 18, 2025, seeking child custody and parenting plan orders, as well as orders regarding the division of property. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 15, 2026, and a review hearing on March 12, 2026. Proof of Service shows Respondent was mail served on December 24, 2025. However, the Proof of Service does not show Respondent was served with a blank FL-320 form.

Only Petitioner appeared at the CCRC appointment on January 15th. As such, a single parent report was filed with the court on January 15th. Copies were mailed to the parties the same day.

Petitioner filed a Declaration on January 22, 2026. There is no Proof of Service for this document, therefore, the court has not considered it.

Petitioner appeared at the hearing on March 12, 2026. Respondent failed to appear. The court found good cause to continue the hearing to allow Petitioner time to perfect service. The court set a further review hearing for May 14, 2026, and directed Petitioner to serve all the required documents as well as a copy of the minute order from the March 12, 2026 hearing on Respondent.

Petitioner filed a Proof of Service as well as an address verification showing Respondent was served by overnight delivery on April 21, 2026.

Petitioner appeared for the hearing on May 14, 2026. The court found good cause to continue to allow Petitioner additional time to properly serve Respondent.

Respondent was served by mail with the May 14, 2026 minute order on May 21, 2026.

Respondent has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds Respondent has failed to participate in any of the CCRC appointments scheduled. Further, Respondent has failed to file a Responsive Declaration to Request for Order, therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court finds Petitioner's requested orders for custody and a parenting plan are in the minors' best interests. The court grants Petitioner sole legal and physical custody of the